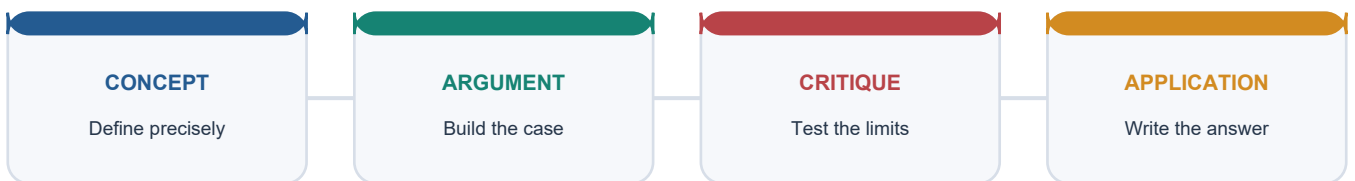


COMPLETE LEARNING SESSION

Polity Topic 36 - Central and State Information Commissions

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / SESSION INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity Topic 36 - Central and State Information Commissions 5

BASIC LEARNING SESSION 5

Learning roadmap	5
SESSION 1 - STATUTORY IDENTITY, CONSTITUTIONAL ROOT AND CHRONOLOGY	5
SESSION 2 - SECTION 2: INFORMATION, RIGHT TO INFORMATION AND PUBLIC AUTHORITY	6
SESSION 3 - SECTION 4: RECORD MANAGEMENT AND PROACTIVE DISCLOSURE	7
SESSION 4 - SECTIONS 5, 6 AND 7: THE REQUEST ARCHITECTURE	8
SESSION 5 - ROLE FIREWALL: PIO, FAA, COMMISSION AND COURT	9
SESSION 6 - SECTIONS 8 AND 9: EXEMPTIONS, PUBLIC INTEREST AND THE TWENTY-YEAR RULE	10
SESSION 7 - SECTIONS 10 AND 11: SEVERABILITY AND THIRD-PARTY ROUTE	11
SESSION 8 - SECTIONS 12 TO 14: CENTRAL INFORMATION COMMISSION	12
SESSION 9 - SECTIONS 15 TO 17: STATE INFORMATION COMMISSIONS	13
SESSION 10 - 2019 AMENDMENT AND 2019 RULES: WHAT THE ACT DELEGATES, WHAT RULES PRESCRIBE	14
SESSION 11 - SECTION 18: COMPLAINT JURISDICTION AND INQUIRY	15
SESSION 12 - SECTION 19: FIRST APPEAL, SECOND APPEAL, BURDEN AND BINDING REMEDIES	16
SESSION 13 - SECTION 20: PERSONAL PENALTY AND DISCIPLINARY RECOMMENDATION	18
SESSION 14 - SECTIONS 22, 23 AND 24: OVERRIDE, COURT BAR AND SECURITY-ORGANISATION EXCEPTIONS	19
SESSION 15 - SECTIONS 25 AND 26: REPORTING, MONITORING, TRAINING AND PUBLIC AWARENESS	20
SESSION 16 - CASE LAW I: RECORDS, FIDUCIARY CLAIMS, PRIVACY AND THE CJI OFFICE	21
SESSION 17 - CASE LAW II: COMPLAINT/APPEAL, PUBLIC-AUTHORITY BOUNDARIES AND ELECTORAL TRANSPARENCY	22
SESSION 18 - INDEPENDENCE, PERFORMANCE PROBLEMS AND DEFENSIBLE REFORMS	23
SESSION 19 - SYNTHESIS: HOW TO WRITE 10-, 15- AND 20-MARK ANSWERS	24

BASIC MCQS / REMEDIATION 25

MCQ 1. Legal identity	25
MCQ 2. Meaning of information	26
MCQ 3. Forms of access	26
MCQ 4. Public-authority gateway	26
MCQ 5. Proactive disclosure	27

MCQ 6. APIO route	27
MCQ 7. Application and transfer	27
MCQ 8. Decision clocks	28
MCQ 9. Delay consequences	28
MCQ 10. Exemption method	28
MCQ 11. Public-interest override	29
MCQ 12. Twenty-year rule	29
MCQ 13. Copyright	29
MCQ 14. Severability	30
MCQ 15. Third-party procedure	30
MCQ 16. CIC composition	30
MCQ 17. CIC appointment	31
MCQ 18. SIC appointment	31
MCQ 19. Qualifications and bars	31
MCQ 20. Act versus Rules	32
MCQ 21. Reappointment	32
MCQ 22. Removal	32
MCQ 23. Complaint and appeal	33
MCQ 24. Section 18 powers	33
MCQ 25. First appeal	33
MCQ 26. Second appeal and burden	33
MCQ 27. Section 19 remedies	34
MCQ 28. Penalty discipline	34
MCQ 29. Section 24	34
MCQ 30. Override and court bar	35
MCQ 31. Case-law control	35
MCQ 32. Monitoring and access reform	35
PYQS AND ANSWER PRACTICE	36
Verified-PYQ and official-key discipline	36
Verified Mains PYQ - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2 - 10 marks, 150 words	36
ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS	36
Original Mains 1 - 10 marks, 150 words	36

Original Mains 2 - 10 marks, 150 words	37
Original Mains 3 - 15 marks, 250 words	37
Original Mains 4 - 15 marks, 250 words	37
Original Mains 5 - 20 marks, 250 words	38
Original Mains 6 - 20 marks, 250 words	38
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	39
Advanced 1 - Structural independence is multidimensional	39
Advanced 2 - Privacy after the DPDP substitution	39
Advanced 3 - Public authority as an anti-evasion doctrine	39
Advanced 4 - Democratic transparency beyond the Commission	39
CONSOLIDATED REGISTER NOTES	39
Identity and chronology	39
Definitions and coverage	40
Request and proactive-disclosure architecture	40
Exemption and balancing architecture	40
CIC and SIC design	40
2019 service framework	40
Complaint, appeal and remedies	41
Override, security and system learning	41
Case anchors	41
Independence, implementation and answer spine	41
COMPLETE ASCII MASTER FLOW DIAGRAM	41

Polity Topic 36 - Central and State Information Commissions

Subject: Polity | **GS Paper:** GS-II | **Control date:** 8 September 2026

Source control: canonical Basic/Core and optional Advanced owners; audited 2020 GS-II routing ledger; OCR-searchable local Indian Polity material; the Right to Information Act, 2005 as currently amended; the RTI (Amendment) Act, 2019; the applicable 2019 service-condition Rules; the 13 November 2025 DPDP commencement notification; and proposition-controlled Supreme Court judgments. Volatile incumbents, vacancies, pendency and disposal figures are omitted.

Core thesis: CIC and SIC are statutory transparency adjudicators with complaint inquiry, binding appellate compliance, compensation and personal-penalty powers, but they remain bounded by the Act's record, exemption, route and judicial-review limits.

BASIC LEARNING SESSION

Learning roadmap

Foundation	Access design	Commission design	Enforcement	Synthesis
status, chronology, definitions	section 4, PIO, request, exemptions	sections 12-17 and 2019 framework	sections 18-20, 22-26	cases, independence, reforms, answer writing

SESSION 1 - STATUTORY IDENTITY, CONSTITUTIONAL ROOT AND CHRONOLOGY

VISUAL FIRST

ARTICLE 19(1)(a) RIGHT-TO-KNOW DOCTRINE
|
Freedom of Information Act, 2002 (predecessor, not the working RTI regime)
|
15 Jun 2005 assent -> immediate institutional provisions -> 12 Oct 2005 full operation
|
RTI Act, 2005: request + disclosure + appeal + Information Commissions
|
2019 Amendment/Rules: service framework recast
|
13 Nov 2025: DPDP section 44(3) substitutes RTI section 8(1)(j)

Definition

The Central Information Commission and State Information Commissions are statutory, quasi-judicial transparency institutions constituted under the Right to Information Act, 2005; the constitutional right to know is rooted in Article 19(1)(a), but the Commissions' offices and powers come from statute.

Answer-grabbing line

The Constitution supplies RTI's democratic reason, while the 2005 Act supplies its records, officers, timelines, exemptions and enforceable remedies.

Must-write keywords

Article 19(1)(a); statutory body; RTI Act, 2005; Act 22 of 2005; 15 June 2005; 12 October 2005; quasi-judicial; right to know

Claim -> named evidence -> analysis -> qualification

- **Claim:** CIC and SIC are statutory institutions, not constitutional bodies.
- **Named evidence:** Sections 12 and 15 require constitution of the Central and State Information Commissions; *State of U.P. v. Raj Narain* (1975) and *S.P. Gupta v. Union of India* (1981) supply the constitutional openness background.

- **Analysis:** This division prevents two errors: treating the Act as the creator of Article 19(1)(a), or treating constitutional doctrine as permission to bypass statutory exemptions and procedure.
- **Qualification:** Binding appellate powers do not make a Commission a constitutional court, and its decisions remain open to constitutional judicial review.

Evidence and explanation

- [FACT] The Act received presidential assent on 15 June 2005. The provisions listed in section 1(3), including the Commission-constitution and rule-making provisions, commenced at once; the remaining provisions commenced on the 120th day, 12 October 2005.
- [FACT] The Freedom of Information Act, 2002 was repealed by section 31. It is a predecessor in chronology, not the governing request-and-appeal code.
- [FACT] The RTI (Amendment) Act, 2019 changed the statutory treatment of tenure, pay and service conditions. The 2019 Rules then prescribed the operational service framework.
- [FACT] DPDP Act, 2023 section 44(3) substituted section 8(1)(j) with effect from 13 November 2025. No volatile incumbent is needed to explain the institution.

Prelims trap

Do not write that CIC is created by Article 19(1)(a), or that the entire Act commenced on the assent date.

Mains use

Use the norm-to-machinery distinction as the introduction to autonomy, exemption or institutional-effectiveness answers.

Recap

constitutional right to know -> statutory RTI code -> specialised Commissions -> bounded and reviewable powers

SESSION 2 - SECTION 2: INFORMATION, RIGHT TO INFORMATION AND PUBLIC AUTHORITY

VISUAL FIRST

```

SECTION 2(f): MATERIAL IN ANY FORM
+ private-body information legally accessible to a public authority
      |
      held by / under control of PUBLIC AUTHORITY
      |
SECTION 2(j): inspect | notes/extracts | certified copies | samples | electronic access

SECTION 2(h) ENTRY GATES
Constitution | parliamentary law | State law | government notification/order
owned | substantially controlled | substantially financed | substantially financed NGO

```

Definition

Section 2 defines the material, holder and forms of access: information is existing material in any form; the right is access to material held by or under a public authority's control; and public authority is determined by specified legal-source, ownership, control or substantial-financing gates.

Answer-grabbing line

An RTI claim succeeds only when both the material and the institutional holder cross the Act's definition gates.

Must-write keywords

section 2(f); section 2(h); section 2(j); held or under control; private-body information; substantial control; substantial finance; certified sample

Claim -> named evidence -> analysis -> qualification

- **Claim:** RTI is a right to existing recorded material, not a duty to manufacture an answer.
- **Named evidence:** Section 2(f)/(j), *CBSE v. Aditya Bandopadhyay* (2011), *Thalappalam Service Cooperative Bank v. State of Kerala* (2013), and *DAV College Trust v. Director of Public Instructions* (2019).

- **Analysis:** The definition reaches formats and legally accessible private-body material broadly, while the public-authority test prevents mere regulation or a trivial grant from automatically converting every private entity into the State.
- **Qualification:** A database extract may be supplied if the information exists and can be accessed, but the authority need not create a new opinion, inference, justification or record.

Evidence and explanation

- [FACT] Section 2(f) includes records, documents, memos, e-mails, opinions, advices, orders, logbooks, contracts, reports, papers, samples, models and electronic data.
- [FACT] Section 2(j) includes inspection of work/documents/records, notes or certified copies, certified material samples, and electronic or print access.
- [FACT] *Thalappalam* treated control as substantial control rather than routine regulatory supervision and placed the burden of showing the section 2(h) gateway on the information seeker.
- [FACT] *DAV College Trust* held that substantial financing may be direct or indirect and need not mean majority financing; it must be real and material on the facts, not merely trivial.

Prelims trap

Registration, regulation, land concession or any grant does not by itself prove substantial control or substantial finance.

Mains use

Use a three-step test: identify material -> prove custody/control or legal access -> prove the section 2(h) institutional gateway.

Recap

existing material + covered holder + recognised access form = statutory right to information

SESSION 3 - SECTION 4: RECORD MANAGEMENT AND PROACTIVE DISCLOSURE

VISUAL FIRST

```

CREATE / MAINTAIN RECORDS
|
catalogue + index + computerise where appropriate + network access
|
publish organisation | powers | rules | budgets | subsidies | concessions | PIOs
|
publish policy facts + reasons for affected administrative/quasi-judicial decisions
|
SECTION 4(2): maximum suo motu disclosure -> minimum resort to individual requests

```

Definition

Section 4 is the preventive transparency layer: it requires organised records and recurring proactive publication before a citizen files a request.

Answer-grabbing line

The strongest RTI system is one in which section 4 makes routine information discoverable before section 6 has to be invoked.

Must-write keywords

section 4(1)(a)-(d); records management; proactive disclosure; suo motu; policy facts; reasons; accessibility; dissemination

Claim -> named evidence -> analysis -> qualification

- **Claim:** Proactive disclosure reduces both information asymmetry and appellate congestion.
- **Named evidence:** Section 4(1)(a)-(d), section 4(2), and the publication/accessibility duties in sections 4(3)-(4).

- **Analysis:** Good cataloguing and usable publication reduce repetitive applications, help identify the accountable officer and make administrative choices contestable with records rather than suspicion.
- **Qualification:** A stale, inaccessible or image-only upload may satisfy form poorly; meaningful disclosure still requires regular updating, cost-effectiveness, local accessibility and attention to persons with disabilities.

Evidence and explanation

- [FACT] Section 4(1)(a) requires records to be catalogued and indexed and, where appropriate, computerised and networked.
- [FACT] Section 4(1)(b) lists institutional particulars such as powers, decision procedures, norms, rules, record categories, consultation arrangements, directories, remuneration, budgets, subsidies, concessions and PIO details.
- [FACT] Section 4(1)(c) requires relevant facts while formulating important policies or announcing decisions affecting the public; section 4(1)(d) requires reasons for affected persons.
- [FACT] Section 4(2) expresses a constant endeavour to provide information suo motu so the public has minimum resort to the Act.

Prelims trap

Section 4 is a duty of each public authority; it is not a power of the Commission to invent unpublished records.

Mains use

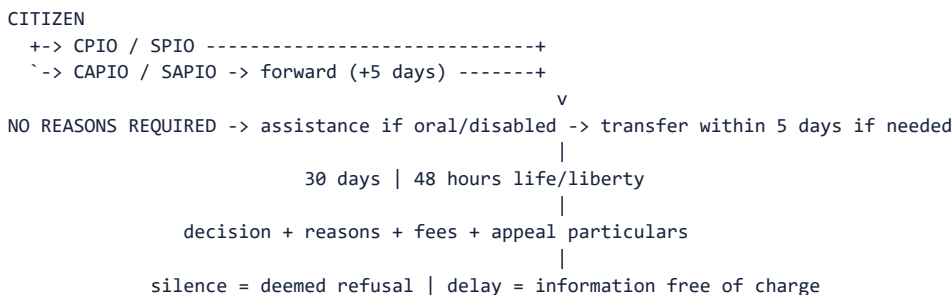
Connect record management to fewer requests, quicker disposal, auditable decisions and reduced discretion.

Recap

organise -> publish -> explain -> update -> reduce requests and appeals

SESSION 4 - SECTIONS 5, 6 AND 7: THE REQUEST ARCHITECTURE

VISUAL FIRST



Definition

Sections 5-7 create a citizen-facing filing and decision system through PIOs/APIOs, reason-free applications, assistance, transfer, fixed clocks, fee controls and reasoned outcomes.

Answer-grabbing line

RTI converts access from administrative grace into a reason-free, time-bound statutory claim.

Must-write keywords

CPIO; SPIO; CAPIO; SAPIO; section 5; section 6(2); transfer within five days; 30 days; 48 hours; deemed refusal; free of charge

Claim -> named evidence -> analysis -> qualification

- **Claim:** The PIO is the primary statutory decision-maker, while the APIO is principally an intake-and-forwarding channel.
- **Named evidence:** Sections 5(1)-(5), 6(1)-(3), and 7(1)-(9).
- **Analysis:** Assistance duties and the ban on demanding reasons lower entry barriers; clocks, fee notices and appeal particulars make non-response reviewable.

- **Qualification:** Central fee figures come from Central rules and should not be universalised to every State; specialised statutory timelines, third-party procedure and APIO additions must be separately computed.

Evidence and explanation

- [FACT] A public authority designates sufficient CPIOs/SPIOs and specified CAPIOs/SAPIOs. An officer whose assistance is sought is treated as a PIO for contravention purposes.
- [FACT] Applications may be written or electronic in English, Hindi or the area's official language; a person unable to write must receive assistance to reduce an oral request to writing.
- [FACT] Section 6(2) forbids demanding reasons or unnecessary personal details. Section 6(3) requires appropriate transfer as soon as practicable and within five days, with immediate intimation.
- [FACT] Section 7 ordinarily allows 30 days and requires 48-hour disclosure for information concerning life or liberty. Silence is deemed refusal; delay beyond the statutory period makes the information free.
- [FACT] A rejection must state reasons, the appeal period and appellate-authority particulars. Access should ordinarily be in the requested form unless it disproportionately diverts resources or harms the record.

Prelims trap

Do not add a five-day transfer period and a five-day APIO period mechanically without identifying which statutory route actually applies.

Mains use

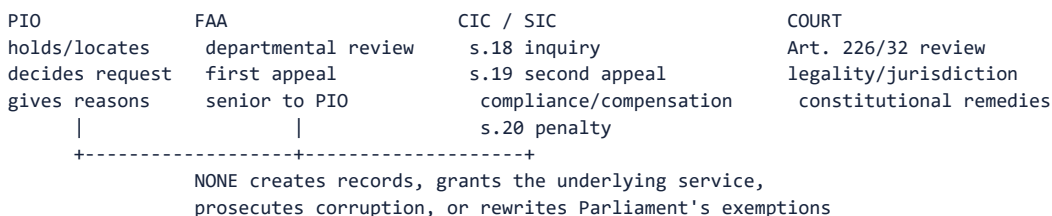
Draw the request clock and show how assistance, reasons, fee control and deemed refusal make access enforceable.

Recap

PIO/APIO -> no reasons -> assist/transfer -> decide on clock -> reasoned outcome or deemed refusal

SESSION 5 - ROLE FIREWALL: PIO, FAA, COMMISSION AND COURT

VISUAL FIRST



Definition

The RTI system separates primary disclosure, internal appellate review, specialised statutory adjudication and constitutional judicial review.

Answer-grabbing line

Institutional clarity is essential: the PIO decides access, the FAA corrects departmental error, the Commission supplies statutory oversight, and constitutional courts review legality.

Must-write keywords

Public Information Officer; First Appellate Authority; section 18 complaint; section 19 second appeal; judicial review; jurisdictional boundary

Claim -> named evidence -> analysis -> qualification

- **Claim:** A binding Commission order is powerful but function-specific.
- **Named evidence:** Sections 7, 18-20 and 23, read with Articles 226 and 32.
- **Analysis:** Separating roles prevents a records-access forum from becoming a substitute service tribunal, criminal investigator, anti-corruption court or general supervisory government.
- **Qualification:** A Commission may direct RTI compliance, compensation and statutory penalty within the Act, but cannot create a missing record, award a pension, prosecute bribery, invalidate an exemption or exercise a general

contempt jurisdiction.

Evidence and explanation

- [FACT] The PIO applies the disclosure provisions to the held record and communicates a reasoned decision.
- [FACT] The first appellate authority is an officer senior in rank to the PIO in the same public authority.
- [FACT] The Commission investigates complaints, decides second appeals, orders compliance, awards statutory compensation and considers section 20 consequences.
- [FACT] High Courts and the Supreme Court retain constitutional review of jurisdiction, legality, fairness and fundamental-rights questions.

Prelims trap

Do not infer a general contempt power from binding decisions or civil-court evidence powers.

Mains use

Use this firewall before evaluating effectiveness: identify which institution legally owns each requested remedy.

Recap

PIO decides -> FAA reviews internally -> Commission applies RTI remedies -> constitutional court reviews legality

SESSION 6 - SECTIONS 8 AND 9: EXEMPTIONS, PUBLIC INTEREST AND THE TWENTY-YEAR RULE

VISUAL FIRST

DISCLOSURE REQUEST

```
graph TD
    A[DISCLOSURE REQUEST] --> B[specific s.8(1) protected interest? ---- no ----> disclose]
    B --> C[yes]
    C --> D[s.8(2): does public interest in disclosure outweigh protected harm?]
    D --> E[s.8(3): if event/matter is 20+ years old, disclose except clauses (a), (c), (i)]
    E --> F[s.9: copyright of a person other than the State may justify rejection]
```

Definition

Sections 8 and 9 create specific withholding grounds, but section 8(2) preserves a general public-interest override and section 8(3) narrows most exemptions after twenty years.

Answer-grabbing line

RTI exemptions are protected-interest tests within a disclosure statute, not a free-standing licence to label records confidential.

Must-write keywords

section 8(1); section 8(2); public-interest override; section 8(3); twenty years; clauses (a), (c), (i); section 9; copyright

Claim -> named evidence -> analysis -> qualification

- **Claim:** A lawful refusal must identify a statutory protected interest and apply the Act's override, age and severability controls.
- **Named evidence:** Sections 8(1)-(3), 9 and 10; *RBI v. Jayantilal N. Mistry* (2015).
- **Analysis:** The structure forces reasoned withholding: classification alone is insufficient, fiduciary or commercial labels require a real legal relationship or harm, and public interest may outweigh protected injury.
- **Qualification:** Section 8(2) is a balancing power, not automatic disclosure; section 8(3) preserves clauses 8(1)(a), (c) and (i), and the Central Government's age-date decision remains subject to the Act's usual appeals.

Evidence and explanation

- [FACT] Section 8(1) protects specified interests including security and strategic interests, court-forbidden information, legislative privilege, commercial confidence/trade secrets/intellectual property, fiduciary information, foreign-government confidence, safety/confidential sources, investigation, Cabinet papers and personal information.
- [FACT] Section 8(2) permits access notwithstanding the Official Secrets Act and section 8(1) where public interest in disclosure outweighs harm to the protected interests.
- [FACT] Section 8(3) normally opens information relating to an event, occurrence or matter twenty years before the request, except information protected by clauses (a), (c) and (i).
- [FACT] Section 9 permits rejection where providing access would involve infringement of copyright subsisting in a person other than the State.
- [FACT] Since 13 November 2025, section 8(1)(j) reads 'information which relates to personal information'. The old public-activity, unwarranted-invasion and clause-specific larger-public-interest language is historical; section 8(2) still remains.

Prelims trap

Do not reproduce the pre-13 November 2025 wording of section 8(1)(j) as current law, and do not say section 8(2) disappeared.

Mains use

Write the sequence: identify clause -> explain likely harm -> test section 8(2) -> sever -> give reasons and appeal.

Recap

specific exemption -> harm -> public interest -> twenty-year rule -> severability -> reasoned decision

SESSION 7 - SECTIONS 10 AND 11: SEVERABILITY AND THIRD-PARTY ROUTE

VISUAL FIRST

ONE MIXED RECORD

```
+-----+-----+-----+-----+
| redact only what is reasonably severable | disclose remainder with reasons |
+-----+-----+-----+-----+
```

THIRD-PARTY CONFIDENTIAL MATERIAL CONTEMPLATED FOR DISCLOSURE

notice within 5 days -> representation within 10 days -> decision within 40 days
-> communicate appeal rights

Definition

Section 10 requires partial access to reasonably severable non-exempt material; section 11 supplies notice and representation when confidential third-party material is contemplated for disclosure.

Answer-grabbing line

Redaction and consultation are calibrated disclosure tools: neither converts a mixed record into a blanket refusal.

Must-write keywords

section 10; severability; redaction; section 11; third party; five days; ten days; forty days; representation; no veto

Claim -> named evidence -> analysis -> qualification

- **Claim:** Section 11 is procedure, not an independent exemption.
- **Named evidence:** Sections 10 and 11, including the statutory definition of third party in section 2(n).
- **Analysis:** The PIO must hear the affected third party and then apply the actual exemption and public-interest framework; consultation improves fairness without transferring the decision to the third party.

- **Qualification:** Except in the statutory trade/commercial-secret setting, public interest may justify disclosure despite possible third-party injury; the final decision remains appealable.

Evidence and explanation

- [FACT] Section 10 requires notice of the disclosed portion, reasons, the decision-maker's particulars, fee details and review rights.
- [FACT] Third party means a person other than the citizen requesting information and includes a public authority.
- [FACT] Where section 11 applies, notice is ordinarily given within five days, the third party gets ten days to make a representation, and the PIO decides within forty days.
- [FACT] A third-party objection is relevant evidence, not an absolute veto.

Prelims trap

Do not list section 11 as clause 8(1)(k) or describe all information mentioning another person as automatically exempt.

Mains use

Use section 10 as the least-restrictive alternative when only part of a document legitimately attracts exemption.

Recap

separate -> redact -> consult -> balance -> decide -> allow appeal

SESSION 8 - SECTIONS 12 TO 14: CENTRAL INFORMATION COMMISSION

VISUAL FIRST

CENTRAL INFORMATION COMMISSION (s.12)
 Chief Information Commissioner + up to 10 Information Commissioners
 |
 President appoints on recommendation of:
 PM (Chair) + Lok Sabha LoP/deemed largest-opposition-group leader
 + Union Cabinet Minister nominated by PM
 |
 eminent public life + listed knowledge/experience fields
 |
 no MP/MLA | office of profit | party link | business | profession
 |
 President removes; SC inquiry for proved misbehaviour/incapacity

Definition

The Central Information Commission is the Union-level Commission under section 12, composed of the Chief Information Commissioner and not more than ten Information Commissioners.

Answer-grabbing line

The CIC combines opposition-inclusive appointment and protected removal with an executive-majority selection design and government-supported administration.

Must-write keywords

sections 12-14; President; Prime Minister; Lok Sabha Leader of Opposition; up to ten; eminence in public life; section 12(5); section 12(6); Supreme Court inquiry

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Act fixes both competence criteria and conflict disqualifications but does not reserve the Commission for judges or civil servants.
- **Named evidence:** Sections 12(3), 12(5)-(7), 13 and 14.
- **Analysis:** Multidisciplinary eligibility suits disputes involving records, administration, media, technology and law; opposition participation adds scrutiny, although the executive retains a committee majority.
- **Qualification:** The largest-opposition-group deeming rule operates when no formal Lok Sabha Leader of Opposition is recognised; it does not add a fourth committee member.

Evidence and explanation

- [FACT] Eligible fields are law, science and technology, social service, management, journalism, mass media, and administration and governance.
- [FACT] A commissioner cannot be an MP or State/UT legislator, hold another office of profit, connect with a political party, carry on business or pursue a profession.
- [FACT] General superintendence, direction and management vest in the Chief, assisted by the Information Commissioners, without subjection to another authority under the Act.
- [FACT] The headquarters is Delhi; other offices require previous Central Government approval.
- [FACT] For proved misbehaviour or incapacity, the President refers the matter to the Supreme Court and may suspend/prohibit attendance during the inquiry. Separate direct grounds include insolvency, specified conviction, paid outside employment, infirmity and prejudicial interest.

Prelims trap

The Chief Justice of India is not on the CIC selection committee, and 'up to ten' does not mean ten seats must always be filled.

Mains use

Evaluate independence through appointment composition, tenure source, removal protection, staffing and decisional powers together.

Recap

capped composition -> statutory committee -> multidisciplinary eligibility -> conflict bars -> protected removal

SESSION 9 - SECTIONS 15 TO 17: STATE INFORMATION COMMISSIONS

VISUAL FIRST

STATE INFORMATION COMMISSION (s.15)
State Chief Information Commissioner + up to 10 State Information Commissioners
|
Governor appoints on recommendation of:
CM (Chair) + Assembly LoP/deemed largest-opposition-group leader
+ State Cabinet Minister nominated by CM
|
same listed expertise and conflict bars
|
Governor removes; SC inquiry for proved misbehaviour/incapacity
|
State public-authority route, not determined by applicant's residence

Definition

A State Information Commission is the State-level statutory Commission under section 15, with a State Chief Information Commissioner and not more than ten State Information Commissioners.

Answer-grabbing line

The SIC mirrors the CIC's structure but substitutes State constitutional and political authorities and ordinarily reviews State public authorities.

Must-write keywords

sections 15-17; Governor; Chief Minister; Assembly Leader of Opposition; State Cabinet Minister; SCIC; State Information Commissioner; State jurisdiction

Claim -> named evidence -> analysis -> qualification

- **Claim:** CIC-SIC symmetry is substantial but not a licence to swap appointment or removal authorities.
- **Named evidence:** Sections 15(3), 15(5)-(7), 16 and 17.
- **Analysis:** The federal mirror permits local appellate enforcement while maintaining common national legal standards under one Act.

- **Qualification:** The Legislative Council Leader of Opposition is not on the statutory committee; jurisdiction follows the public authority and appropriate-government structure, not the applicant's address.

Evidence and explanation

- [FACT] The State Government constitutes the SIC by Gazette notification.
- [FACT] The Governor appoints on the recommendation of the Chief Minister, Assembly opposition leader and a Cabinet Minister nominated by the Chief Minister.
- [FACT] Eligibility and conflict bars parallel the Central provisions.
- [FACT] The Governor, not the President, removes State commissioners; proved misbehaviour/incapacity requires the Supreme Court inquiry route on the Governor's reference.
- [FACT] The State Chief exercises superintendence, direction and management assisted by State Information Commissioners.

Prelims trap

Do not import the SHRC removal rule: SIC members are removed by the Governor, whereas SHRC members are removed under a different statute.

Mains use

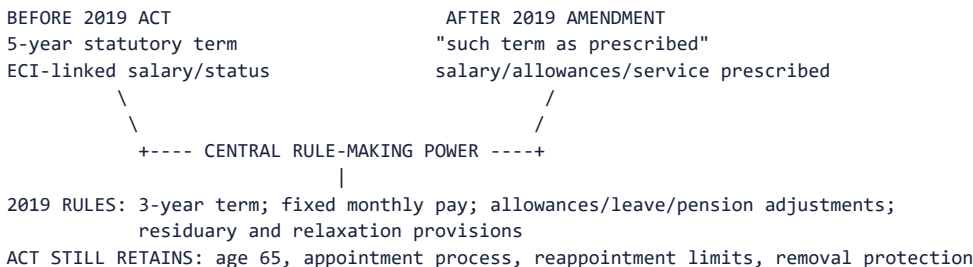
Use a common-head comparison: composition, appointing authority, committee, jurisdiction, tenure/service rules and removal.

Recap

State constitution -> Governor appointment -> CM-led committee -> State RTI jurisdiction -> Governor removal

SESSION 10 - 2019 AMENDMENT AND 2019 RULES: WHAT THE ACT DELEGATES, WHAT RULES PRESCRIBE

VISUAL FIRST



Definition

The 2019 Amendment removed fixed tenure and Election-Commission-linked service provisions from the Act and delegated specified conditions to Central rules; the 2019 Rules prescribe the current operational term and pay framework.

Answer-grabbing line

The autonomy controversy concerns not only a shorter term but the transfer of structural safeguards from parliamentary text to executive rule-making.

Must-write keywords

RTI (Amendment) Act, 2019; delegated legislation; 2019 Rules; three years; age sixty-five; fixed pay; non-disadvantage; executive control

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Act and Rules must be cited separately because they perform different legal work.
- **Named evidence:** Amended sections 13 and 16 and the Right to Information service-condition Rules, 2019.
- **Analysis:** Delegation gives administrative flexibility, but the Central Government now prescribes core conditions for both Central and State commissioners who adjudicate access disputes involving government.

- **Qualification:** The amendment did not abolish the age ceiling, appointment committees, reappointment restrictions, protected removal or binding statutory powers.

Evidence and explanation

- [FACT] The Rules prescribe a three-year term from entering office for the Central Chief, Central ICs, State Chief and State ICs, subject to the statutory age ceiling of sixty-five.
- [FACT] A Chief is not eligible for reappointment in that office. An Information Commissioner is not reappointable as an IC but may be appointed Chief through the statutory process; aggregate service as IC and Chief cannot exceed five years. State provisions are parallel.
- [FACT] The 2019 Rules prescribe monthly fixed pay of Rs 2,50,000 for the Central Chief and Rs 2,25,000 for a Central IC, State Chief and State IC, subject to specified pension/retirement adjustments.
- [FACT] The Rules address allowances, leave, medical facilities, accommodation, travel, residuary questions and relaxation. The Act's non-disadvantage protection applies after appointment.
- [FACT] Old parity with the Chief Election Commissioner/Election Commissioners or Chief Secretary is historical context, not the current legal source.

Prelims trap

Do not say Parliament itself now fixes a three-year term, or that the Central Chief and State Chief receive identical current pay.

Mains use

Present the government's rationalisation argument, then analyse decisional dependence, State-federal concerns and surviving safeguards.

Recap

Act delegates -> Rules prescribe -> executive flexibility rises -> structural-insulation concern -> removal/powers survive

SESSION 11 - SECTION 18: COMPLAINT JURISDICTION AND INQUIRY

VISUAL FIRST

SECTION 18 COMPLAINT TRIGGERS

no PIO | application not accepted | access refused | no timely response
unreasonable fee | incomplete/misleading/false information | other access matter

|
Commission may inquire when reasonable grounds exist
|
civil-court evidence powers + inspect any RTI-covered record
|
inquiry / section 20 consequences where attracted
X
not the substitute route for an order granting disclosure

Definition

Section 18 authorises the Commission to receive and inquire into listed access-administration complaints and gives civil-court-like evidence powers for that inquiry.

Answer-grabbing line

A section 18 complaint supervenes failure in the access machinery; it is not automatically the appellate route for obtaining the requested record.

Must-write keywords

section 18; complaint; reasonable grounds; civil-court powers; summon; affidavit; inspect record; State of Manipur; no disclosure substitution

Claim -> named evidence -> analysis -> qualification

- **Claim:** Complaint and appeal occupy distinct statutory fields.
- **Named evidence:** Section 18 and *Chief Information Commissioner v. State of Manipur* (2011).
- **Analysis:** Complaint jurisdiction addresses failures such as absence of a PIO, refusal to accept an application, delay, unreasonable fee or false/incomplete information; the appeal route tests denial and carries the disclosure remedy.
- **Qualification:** A complaint inquiry may expose contravention and lead to section 20 consideration, but it should not be presented as a bypass around section 19 for disclosure.

Evidence and explanation

- [FACT] Section 18(1) enumerates complaints concerning inability to submit, refusal of access, no response, unreasonable fee, incomplete/misleading/false information and any other matter relating to requesting or obtaining access.
- [FACT] If satisfied that reasonable grounds exist, the Commission may initiate an inquiry.
- [FACT] Inquiry powers include summoning, enforcing attendance, examining on oath, discovery/inspection, affidavit evidence, requisitioning public records and issuing summons for witnesses/documents.
- [FACT] During inquiry the Commission may examine any record to which the Act applies, and such record cannot be withheld from it on any ground.
- [FACT] In *State of Manipur*, the Supreme Court held that section 18 does not confer the section 19 appellate power to direct disclosure.

Prelims trap

Civil-court powers are evidence-gathering powers; they do not make the Commission a civil court with general decree or contempt jurisdiction.

Mains use

When a question asks what route secures information, state first appeal and second appeal; reserve section 18 for complaint supervision.

Recap

listed complaint -> reasonable grounds -> inquiry/evidence -> possible penalty -> no automatic disclosure order

SESSION 12 - SECTION 19: FIRST APPEAL, SECOND APPEAL, BURDEN AND BINDING REMEDIES

VISUAL FIRST

PIO DECISION / DEEMED REFUSAL

|
FIRST APPEAL within 30 days -> officer senior to PIO
|
decision ordinarily 30 days, up to 45 with written reasons

|
SECOND APPEAL within 90 days -> CIC / SIC

|
PIO bears burden to justify denial

|
binding decision: access + compliance directions + compensation + penalty process

Definition

Section 19 creates the disclosure-remedy ladder: a departmental first appeal followed by a Commission second appeal, with the burden on the denying PIO and binding Commission decisions.

Answer-grabbing line

Section 19 converts refusal into review by shifting the justificatory burden to the information-holder and empowering the Commission to restore both individual access and systemic compliance.

Must-write keywords

section 19(1); first appeal; section 19(3); second appeal; 30 days; 90 days; section 19(5) burden; section 19(7) binding; section 19(8); compensation

Claim -> named evidence -> analysis -> qualification

- **Claim:** The second appeal is more than a yes/no disclosure review.
- **Named evidence:** Sections 19(5), 19(7), 19(8) and 19(9).
- **Analysis:** The Commission can correct the individual denial and the institutional cause by ordering PIO designation, publication, record-management changes, training or annual-report compliance.
- **Qualification:** The Commission cannot grant the underlying service benefit, create a non-existent record, prosecute corruption or exercise unlimited equitable power.

Evidence and explanation

- [FACT] The first appeal ordinarily lies within thirty days to an officer senior in rank to the PIO; delay may be condoned for sufficient cause.
- [FACT] A third party aggrieved by a disclosure order may appeal within thirty days. A second appeal ordinarily lies within ninety days to the CIC/SIC, with condonation power.
- [FACT] Section 19(5) places the onus of proving justified denial on the PIO.
- [FACT] Section 19(6) requires disposal in thirty days or, with recorded reasons, within a total of forty-five days.
- [FACT] Section 19(7) makes the Commission's decision binding. Section 19(8) permits access and compliance directions, compensation for loss/detriment, and imposition of the Act's penalties; section 19(9) requires communication of the decision and appeal rights.

Prelims trap

Do not call the FAA the CIC, and do not place the burden of proving illegality on the citizen in a second appeal.

Mains use

Distinguish restorative access, systemic compliance, compensation and personal penalty in separate sentences.

Recap

first appeal -> second appeal -> PIO burden -> binding access/system reform -> compensation/penalty

SESSION 13 - SECTION 20: PERSONAL PENALTY AND DISCIPLINARY RECOMMENDATION

VISUAL FIRST

COMMISSION DECIDING COMPLAINT OR APPEAL

without reasonable cause:

refused application | delayed | mala fide denial | knowingly false/incomplete/misleading
destroyed requested information | obstructed furnishing

reasonable opportunity of hearing

PIO must prove reasonable and diligent conduct

Rs 250 per day -> maximum Rs 25,000

persistent default -> disciplinary recommendation under service rules

Definition

Section 20 creates personal statutory accountability for the responsible CPIO/SPIO and a separate disciplinary-recommendation route for persistent default.

Answer-grabbing line

RTI's deterrent design is individualised: compensation repairs applicant harm, penalty disciplines access obstruction, and service proceedings address persistent misconduct.

Must-write keywords

section 20(1); Rs 250 per day; Rs 25,000 maximum; reasonable opportunity; reasonable and diligent; burden on PIO; section 20(2); disciplinary recommendation

Claim -> named evidence -> analysis -> qualification

- **Claim:** Penalty is neither automatic on every delay nor a corporate fine on the public authority.
- **Named evidence:** Sections 20(1)-(2), read with section 19(8)(b).
- **Analysis:** The hearing and due-care defence protect honest administration, while the reverse burden makes the officer explain why statutory non-compliance was reasonable.
- **Qualification:** The Commission recommends disciplinary action under applicable service rules; it does not itself conduct the employer's full disciplinary proceeding or order criminal prosecution.

Evidence and explanation

- [FACT] Penalty triggers include unjustified refusal to receive an application, delay, mala fide denial, knowing supply of incorrect/incomplete/misleading information, destruction of requested information and obstruction.
- [FACT] The rate is Rs 250 for each day until the application is received or information furnished, capped at Rs 25,000.
- [FACT] The PIO receives a reasonable opportunity of being heard and bears the burden of proving reasonable and diligent conduct.
- [FACT] Section 20(2) addresses persistent failure through recommendation for disciplinary action under the applicable service rules.
- [FACT] Compensation under section 19(8)(b) is paid by the public authority for loss or detriment and must not be confused with the PIO's personal penalty.

Prelims trap

A late response does not mechanically prove penalty; the statutory trigger, hearing and reasonable-cause/diligence inquiry still matter.

Mains use

Use the triad restorative compensation -> deterrent penalty -> service-disciplinary recommendation.

Recap

trigger -> notice/hearing -> PIO burden -> capped personal penalty -> persistent-default recommendation

SESSION 14 - SECTIONS 22, 23 AND 24: OVERRIDE, COURT BAR AND SECURITY-ORGANISATION EXCEPTIONS

VISUAL FIRST

SECTION 22: RTI Act prevails over inconsistent Official Secrets Act / other law

|
RTI's own exemptions remain

SECTION 23: no ordinary suit/application/proceeding against RTI orders

|
constitutional review under Articles 226/32 survives

SECTION 24 LISTED INTELLIGENCE/SECURITY BODY

general exclusion -> corruption allegation: Act applies

-> human-rights allegation: CIC/SIC approval + 45 days

Definition

Section 22 gives the RTI Act overriding effect over inconsistent law; section 23 channels challenges away from ordinary proceedings; section 24 creates a listed security/intelligence exclusion with corruption and human-rights exceptions.

Answer-grabbing line

RTI overrides inconsistent secrecy law but remains internally calibrated by its own exemptions, special-body exclusion and constitutional review.

Must-write keywords

section 22; Official Secrets Act, 1923; section 23; court bar; Article 226; Article 32; section 24; Second Schedule; corruption; human-rights violation; approval; 45 days

Claim -> named evidence -> analysis -> qualification

- **Claim:** Section 24 is broad but not absolute.
- **Named evidence:** Section 24(1) Central route, section 24(4) State route, and their corruption/human-rights provisos.
- **Analysis:** Parliament protected sensitive organisations while preserving accountability for corruption and rights violations; human-rights requests receive an additional institutional approval screen and special timeline.
- **Qualification:** The 45-day and approval route applies to human-rights allegations, not automatically to corruption allegations; ordinary constitutional judicial review is not extinguished by section 23.

Evidence and explanation

- [FACT] For Central organisations in the Second Schedule and information furnished by them to government, the Act generally does not apply.
- [FACT] Information pertaining to allegations of corruption and human-rights violations is not excluded by the general bar.
- [FACT] Central human-rights information requires CIC approval and must be provided within forty-five days notwithstanding section 7. The State-notified route parallels this with SIC approval.
- [FACT] The appropriate government may amend the relevant list by Gazette notification subject to legislative laying.
- [FACT] Section 22 resolves inconsistency in favour of the RTI Act; it does not delete sections 8, 9 or 24. Section 23 does not oust High Court or Supreme Court writ jurisdiction.

Prelims trap

Do not attach CIC approval and the forty-five-day period to every corruption request under section 24.

Mains use

Contrast statutory finality with constitutional review and explain why security accountability uses a differentiated route.

Recap

override external inconsistency -> retain RTI limits -> ordinary proceeding barred -> writ review survives -> precise s24 carve-outs

SESSION 15 - SECTIONS 25 AND 26: REPORTING, MONITORING, TRAINING AND PUBLIC AWARENESS

VISUAL FIRST

PUBLIC AUTHORITIES / MINISTRIES collect annual RTI data
|
appropriate Government sends information to CIC/SIC
|
SECTION 25 annual report: requests | refusals | appeals | discipline | fees | reform
|
Government lays report before Parliament / State Legislature

SECTION 26: public education + disadvantaged-community outreach + PIO training
+ practical guide, updated when necessary

Definition

Sections 25 and 26 create the system-learning layer through annual monitoring, legislative reporting, public education, training and practical guidance.

Answer-grabbing line

The RTI regime is designed not only to decide cases but to learn from refusal patterns and widen citizens' ability to use the law.

Must-write keywords

section 25; annual report; legislative laying; rejection provisions; disciplinary action; recommendations;
section 26; awareness; disadvantaged communities; PIO training; guide

Claim -> named evidence -> analysis -> qualification

- **Claim:** Annual reporting converts individual disputes into evidence for institutional correction.
- **Named evidence:** Sections 25(1)-(5) and 26(1)-(3).
- **Analysis:** Aggregated data can expose recurring exemptions, weak ministries, delay and penalty patterns; awareness and training address capability failures on both sides of the counter.
- **Qualification:** Reports do not by themselves compel implementation, and changing publication totals must be date-verified rather than frozen into static notes.

Evidence and explanation

- [FACT] Each Commission prepares an annual implementation report; ministries/departments supply information about public authorities within their jurisdiction.
- [FACT] The report covers request numbers, decisions denying access and invoked provisions, appeals, disciplinary action, collected charges, administration efforts and recommendations.
- [FACT] The appropriate Government lays the report before Parliament or the State Legislature.
- [FACT] If a public authority's practice does not conform to the Act, the Commission may recommend steps to promote conformity.
- [FACT] Section 26 directs educational programmes, especially for disadvantaged communities, participation by public authorities, PIO training and a practical guide in the official language.

Prelims trap

The Commission sends its report through the appropriate Government for legislative laying; it does not itself enact corrective law.

Mains use

Use sections 25-26 to move reforms beyond vacancies toward data quality, training, record systems and citizen capability.

Recap

collect -> report -> lay -> recommend -> educate -> train -> update guidance

SESSION 16 - CASE LAW I: RECORDS, FIDUCIARY CLAIMS, PRIVACY AND THE CJI OFFICE

VISUAL FIRST

Case	Precise holding/use	Boundary
<i>CBSE v. Aditya Bandopadhyay</i> (2011)	evaluated answer books are information; RTI reaches held material	no duty to create opinions/inferences or reshape records
<i>Girish Ramchandra Deshpande v. CIC</i> (2012)	personal service/tax details withheld absent larger public interest under then-current clause	pre-2025 section 8(1)(j) wording
<i>RBI v. Jayantilal N. Mistry</i> (2015)	no blanket fiduciary shield for RBI's regulatory records	specific exemptions may still apply
<i>CPIO, Supreme Court v. Subhash Chandra Agarwal</i> (2019)	CJI office is a public authority; privacy, confidentiality and independence require balancing	not unconditional disclosure

Definition

RTI case law supplies proposition-specific controls on what counts as information, when fiduciary/privacy claims work and how powerful institutions remain within the public-authority framework.

Answer-grabbing line

Use each RTI precedent for its narrow ratio, not as a slogan that either all records must be disclosed or privacy always wins.

Must-write keywords

evaluated answer book; existing record; fiduciary relationship; larger public interest; regulatory information; CJI office; public authority; proportionality

Claim -> named evidence -> analysis -> qualification

- **Claim:** The Supreme Court rejects both blanket secrecy and boundless disclosure.
- **Named evidence:** *CBSE* (2011), *Girish Ramchandra Deshpande* (2012), *Jayantilal N. Mistry* (2015), and *Subhash Chandra Agarwal* (2019).
- **Analysis:** Together the cases demand attention to custody, legal relationship, protected harm, public interest and institutional independence.
- **Qualification:** *Girish* and the statutory part of *Subhash Chandra Agarwal* interpreted the earlier section 8(1)(j); after 13 November 2025, current answers must use the substituted clause plus section 8(2), section 10 and constitutional doctrine.

Evidence and explanation

- [FACT] *CBSE* recognised evaluated answer books as information and rejected the examining body's claimed fiduciary barrier, while stressing that RTI does not compel creation of information, new advice or fresh inference.
- [FACT] *Girish* treated service records, memos, show-cause material, punishment and income-tax details as personal information absent demonstrated larger public interest under the clause then in force.

- [FACT] *Jayantilal N. Mistry* held that RBI does not stand in a fiduciary relationship with regulated banks when performing public regulatory duties; exemption must be proved specifically.
- [FACT] The Constitution Bench in *Subhash Chandra Agarwal* held the office of the CJI to be a public authority and required calibrated treatment of transparency, privacy, confidentiality and judicial independence.

Prelims trap

Do not quote an old clause-specific privacy test as the current statutory text merely because a leading precedent used it.

Mains use

Pair statutory text with the date of the case and state whether its constitutional method or exact clause wording remains current.

Recap

held records -> specific relationship/harm -> public interest -> proportionality -> current-text control

SESSION 17 - CASE LAW II: COMPLAINT/APPEAL, PUBLIC-AUTHORITY BOUNDARIES AND ELECTORAL TRANSPARENCY

VISUAL FIRST

STATE OF MANIPUR (2011) -> complaint inquiry is not disclosure appeal
 THALAPPALAM (2013) -> substantial control, not mere regulation
 DAV COLLEGE TRUST (2019) -> real/material direct or indirect government finance
 ELECTORAL BONDS (2024) -> voters' Article 19(1)(a) information interest in political funding
 |
 constitutional transparency principle != new CIC/SIC jurisdiction

Definition

These decisions distinguish the correct statutory remedy, the boundaries of public authority and the wider constitutional importance of information to democratic choice.

Answer-grabbing line

Transparency jurisprudence can strengthen the reason for disclosure without enlarging a Commission's jurisdiction beyond the RTI Act.

Must-write keywords

Chief Information Commissioner v. State of Manipur; Thalappalam; DAV College Trust; substantial control; substantial finance; Association for Democratic Reforms v. Union of India; electoral bonds; voter information

Claim -> named evidence -> analysis -> qualification

- **Claim:** Constitutional transparency and statutory RTI coverage are related but not identical questions.
- **Named evidence:** *State of Manipur* (2011), *Thalappalam* (2013), *DAV College Trust* (2019), and the Electoral Bonds judgment, *Association for Democratic Reforms v. Union of India* (2024).
- **Analysis:** The cases show four distinct filters: choose the appeal route for disclosure, prove the section 2(h) gateway, treat material public finance seriously and recognise information about political funding as vital to informed voting.
- **Qualification:** The Electoral Bonds judgment invalidated the anonymous scheme and connected amendments on constitutional grounds; it did not create a general Information Commission power over every political-finance dispute.

Evidence and explanation

- [FACT] *State of Manipur* separates section 18 inquiry from section 19 disclosure appeal.
- [FACT] *Thalappalam* refuses to equate pervasive regulation with substantial control and requires proof of the section 2(h) link.

- [FACT] *DAV College Trust* recognises direct or indirect substantial government finance where support is material in context.
- [FACT] In 2024, a Constitution Bench held the Electoral Bonds Scheme unconstitutional and treated information about political funding as important to voters' Article 19(1)(a) choice; it also invalidated connected disclosure-diluting amendments in the adjudicated framework.

Prelims trap

Do not cite the Electoral Bonds case as if it were a section 19 second-appeal order of the CIC.

Mains use

Use the case as constitutional evidence for informed democratic choice, then return to the RTI Act for forum and remedy.

Recap

correct route -> covered body -> material public support -> democratic information -> jurisdictional discipline

SESSION 18 - INDEPENDENCE, PERFORMANCE PROBLEMS AND DEFENSIBLE REFORMS

VISUAL FIRST

LEGAL CAPACITY

binding appeals + compliance + compensation + personal penalty

|

INSTITUTIONAL CONDITIONS

timely appointments | adequate benches/staff | usable records | reasoned FAA review

|

ACCESS CONDITIONS

digital + physical channels | language | disability access | awareness

|

OUTCOME

timely disclosure + deterrence + trust

FAILURE AT ANY LINK -> backlog / non-compliance / exclusion / symbolic transparency

Definition

Information-Commission effectiveness depends on both legal power and the institutional, record-management and access capacity needed to convert orders into timely information.

Answer-grabbing line

The RTI regime is legally stronger than a recommendatory watchdog yet practically vulnerable to appointment delay, backlog, weak records, uneven compliance and exclusionary access design.

Must-write keywords

independence; 2019 Amendment; vacancies; backlog; section 4 audit; record management; independent secretariat; compliance monitoring; digital divide; misuse narrative; proportionality

Claim -> named evidence -> analysis -> qualification

- **Claim:** Capacity failure can neutralise binding law without formally amending it.
- **Named evidence:** *Anjali Bhardwaj v. Union of India* (2019), sections 4, 19, 20, 25 and 26.
- **Analysis:** An empty seat, unusable file system, perfunctory first appeal or untracked order converts a nominal remedy into delayed justice; digital-only filing can shift costs onto rural, poor, disabled or low-connectivity applicants.
- **Qualification:** Do not freeze volatile vacancy or pendency numbers, and do not use anecdotes of repetitive or vexatious requests to create an extra-statutory motive test or blanket exclusion.

Evidence and explanation

- [FACT] *Anjali Bhardwaj* required timely and transparent appointment processes and advance initiation; the structural principle remains useful without naming current incumbents or vacancies.

- [FACT] Defensible reforms include advance vacancy calendars, published objective criteria and shortlists, adequately resourced independent registries/secretariats, time-bound compliance tracking and reasoned section 20 practice.
- [FACT] Section 4 audits, interoperable record schedules, searchable digital repositories and lawful preservation reduce both genuine non-availability and concealment.
- [FACT] Access reform should preserve assisted physical filing, local-language support, accessible formats and public facilitation alongside online portals.
- [FACT] A misuse narrative should be answered through lawful procedure, proportionate resource management and proactive disclosure, not by requiring reasons that section 6(2) forbids.
- [FACT] Privacy should be protected through current section 8(1)(j), section 8(2) balancing, section 10 severance, security controls and reasoned orders rather than indiscriminate secrecy.

Prelims trap

Do not describe all RTI applicants as activists, all delays as mala fide, or every repeated request as legally abusive.

Mains use

Conclude with a reform chain that protects appointments, decisional autonomy, records, access, enforcement and privacy together.

Recap

legal teeth + staffed institution + good records + inclusive access + compliance = effective transparency

SESSION 19 - SYNTHESIS: HOW TO WRITE 10-, 15- AND 20-MARK ANSWERS

VISUAL FIRST

Demand	Opening	Core sequence	Qualified close
autonomy	statutory status + 2019 shift	Act/Rules -> dependence risk -> surviving safeguards	restore insulation without denying flexibility
complaint v appeal	distinct routes	s.18 triggers/powers -> <i>Manipur</i> -> s.19 disclosure	choose remedy by relief sought
exemptions/privacy	disclosure statute	exact clause -> harm -> s.8(2) -> s.10 -> appeal	privacy and accountability require proportionality
effectiveness	legal teeth	s.4/PIO/appeal/penalty -> capacity gaps -> reforms	capacity, not slogans, determines outcomes

Definition

An examiner-ready RTI answer selects the correct statutory route, attaches named authority to each claim and ends with a bounded institutional judgment.

Answer-grabbing line

A high-scoring RTI answer moves from exact section to operating mechanism, then to evidence, limitation and a remedy matched to the identified failure.

Must-write keywords

directive fidelity; statutory route; named authority; mechanism; institutional boundary; proportionality; reform; qualified conclusion

Claim -> named evidence -> analysis -> qualification

- **Claim:** Structure is substantive because it prevents mixing request, complaint, appeal, penalty and judicial-review powers.

- **Named evidence:** Sections 2-26, the 2019 Amendment/Rules, and proposition-controlled Supreme Court authorities.
- **Analysis:** A claim-evidence-analysis-qualification paragraph shows not only what the law says but why it changes incentives, access or accountability.
- **Qualification:** Current facts such as incumbency, vacancy, disposal or backlog require date-specific verification and are unnecessary unless the question demands them.

Evidence and explanation

- [FACT] For 10 marks, use a thesis, three analytical paragraphs and a qualified conclusion within 150 words.
- [FACT] For 15 marks, add chronology, institutional comparison, counter-position and targeted reform within 250 words.
- [FACT] For 20 marks, integrate constitutional root, complete statutory mechanism, case law, implementation and graded reform within 250 words where that is the specified limit.
- [FACT] Always distinguish fact from analysis and use case holdings only for their precise proposition.

Prelims trap

Do not write a generic transparency essay when the demand asks about Commission autonomy, complaint jurisdiction or a particular exemption.

Mains use

Use the closing formula: exact legal position -> institutional consequence -> surviving safeguard -> proportionate reform.

Recap

decode directive -> choose route -> claim/evidence/analysis/qualification -> answer limit -> reform -> graded verdict

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique question-specific examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Legal identity

Which description is legally correct?

A. CIC and SIC are statutory bodies constituted under the RTI Act, 2005. B. CIC is a constitutional body while SIC is statutory. C. Both Commissions are tribunals under Article 323B. D. They are executive committees without adjudicatory powers.

Answer: A.

Option-specific explanations:

- **A:** Sections 12 and 15 create statutory Commissions under the RTI Act.
- **B:** Article 19(1)(a) supports the right to know but does not create the offices.
- **C:** Article 323B does not establish Information Commissions.
- **D:** Their section 19 decisions and section 20 powers are statutory adjudicatory functions.

Examiner trap 1: Constitutional value does not convert statutory origin into constitutional status.

MCQ 2. Meaning of information

A citizen asks a ministry to create a fresh expert opinion explaining why a policy failed. Which is most accurate?

A. The ministry must create it because opinions are listed in section 2(f). B. RTI reaches an existing recorded opinion but does not ordinarily require creation of a new one. C. The Commission must write the expert opinion. D. Every 'why' question is outside RTI even when reasons are already recorded.

Answer: B.

Option-specific explanations:

- **A:** The word 'opinion' covers an opinion already held in material form, not a compelled new opinion.
- **B:** Section 2(f), read with *CBSE*, supports access to held material and rejects a record-creation duty.
- **C:** The Commission adjudicates access; it is not the record-generating expert body.
- **D:** Recorded reasons or file notings can be information even if the request uses interrogative wording.

Examiner trap 2: The grammar of the request is less important than whether responsive recorded material exists.

MCQ 3. Forms of access

Which is expressly included in the section 2(j) right to information?

A. A direction granting the applicant's pension. B. A criminal investigation into a bribery allegation. C. Taking certified samples of material. D. A fresh legal opinion from the PIO.

Answer: C.

Option-specific explanations:

- **A:** RTI may disclose pension records but does not itself grant the pension.
- **B:** A corruption agency, not the Information Commission, conducts a criminal investigation.
- **C:** Section 2(j) expressly includes taking certified samples of material.
- **D:** The PIO supplies held information and need not generate fresh professional advice.

Examiner trap 3: Access to a sample is statutory; access to the underlying service entitlement is not.

MCQ 4. Public-authority gateway

Which proposition best states the section 2(h) boundary?

A. Every registered society is a public authority. B. Any government regulation proves control. C. Any financial concession is automatically substantial finance. D. Substantial control or substantial direct/indirect government finance requires a real, fact-sensitive link.

Answer: D.

Option-specific explanations:

- **A:** Registration supplies legal personality, not an RTI public-authority gateway.
- **B:** *Thalappalam* distinguishes substantial control from ordinary regulation or supervision.
- **C:** A concession may be relevant evidence but does not automatically establish substantial financing.
- **D:** Section 2(h), *Thalappalam* and *DAV College Trust* require a material institutional or financing nexus.

Examiner trap 4: Do not replace the statutory adjective 'substantial' with 'any'.

MCQ 5. Proactive disclosure

The central purpose of section 4(2) is to

A. promote maximum suo motu disclosure so citizens need minimum resort to requests. B. authorise the Commission to amend exemptions. C. replace every PIO with an online portal. D. make publication optional where records are digitised.

Answer: A.

Option-specific explanations:

- **A:** Section 4(2) expressly states the maximum-disclosure/minimum-request objective.
- **B:** Exemptions can be amended by competent law, not Commission preference.
- **C:** Digital publication supplements rather than abolishes statutory officers and assistance.
- **D:** Computerisation does not remove the proactive-disclosure duty.

Examiner trap 5: A website is a channel; section 4 is a continuing institutional duty.

MCQ 6. APIO route

An application submitted through a designated Assistant Public Information Officer ordinarily has

A. no valid filing effect until it reaches the PIO. B. five days added when computing the response period. C. a guaranteed five-day final decision. D. automatic fee exemption.

Answer: B.

Option-specific explanations:

- **A:** The APIO is a statutory receiving and forwarding point.
- **B:** The proviso to section 5(2) adds five days to the response computation.
- **C:** Five days is not the ordinary substantive decision period.
- **D:** Fee treatment depends on the applicable law/rules, not merely the receiving officer.

Examiner trap 6: Do not confuse the APIO addition with the section 6(3) transfer deadline.

MCQ 7. Application and transfer

Which statement is correct?

A. The applicant must prove a public-interest motive. B. A transfer may wait until the thirtieth day. C. A request needs no reasons, and a necessary section 6(3) transfer must occur within five days. D. Only the Commission may transfer an application.

Answer: C.

Option-specific explanations:

- **A:** Section 6(2) bars a reasons requirement.
- **B:** Section 6(3) uses a five-day outer limit, not thirty days.
- **C:** The Act combines motive-free filing with prompt transfer and applicant intimation.
- **D:** The receiving public authority itself transfers under section 6(3).

Examiner trap 7: A motive-free application can still be subject to lawful exemptions.

MCQ 8. Decision clocks

Which pairing is accurate under section 7?

A. Ordinary request: 45 days; life/liberty: 7 days. B. Ordinary request: 15 days; life/liberty: 24 hours. C. Ordinary request: 30 days; life/liberty: 5 days. D. Ordinary request: 30 days; life/liberty: 48 hours.

Answer: D.

Option-specific explanations:

- **A:** Forty-five days is associated with extended first-appeal disposal or section 24 human-rights information, not the ordinary request.
- **B:** Neither fifteen days nor twenty-four hours is the section 7 standard.
- **C:** Five days concerns transfer/APIO computations, not the life-or-liberty deadline.
- **D:** Section 7(1) provides thirty days ordinarily and forty-eight hours for life or liberty.

Examiner trap 8: Life-or-liberty urgency is not a general fast track for every important request.

MCQ 9. Delay consequences

A public authority gives no decision within the applicable period. The Act treats this as

A. deemed refusal, and delayed information is to be supplied free of charge. B. automatic criminal contempt. C. acceptance of every factual allegation in the application. D. termination of the applicant's appeal right.

Answer: A.

Option-specific explanations:

- **A:** Sections 7(2) and 7(6) create deemed refusal and no-fee consequences.
- **B:** The Act does not create automatic contempt for delay.
- **C:** Silence affects access procedure, not truth of allegations.
- **D:** Deemed refusal activates review rather than extinguishing it.

Examiner trap 9: Free supply after delay is distinct from compensation and section 20 penalty.

MCQ 10. Exemption method

Which is the soundest section 8 method?

A. Accept 'confidential' as a complete legal reason. B. Identify the exact clause and protected harm, then test overrides and severability. C. Withhold every record containing a personal name. D. Ask the third party to decide conclusively.

Answer: B.

Option-specific explanations:

- **A:** Confidentiality is not an extra-statutory exemption.
- **B:** A reasoned decision identifies statutory protection, harm, section 8(2) and section 10.
- **C:** A name alone does not decide the statutory exemption analysis.
- **D:** Section 11 consultation does not transfer decision power to the third party.

Examiner trap 10: The burden of legal classification remains with the statutory decision-maker.

MCQ 11. Public-interest override

Section 8(2) permits disclosure when

A. the applicant is a journalist. B. the record is politically controversial. C. public interest in disclosure outweighs harm to the protected interests, notwithstanding section 8(1) and the Official Secrets Act. D. twenty years have passed in every case.

Answer: C.

Option-specific explanations:

- **A:** Occupation does not itself trigger the override.
- **B:** Controversy may signal interest but is not the statutory balance.
- **C:** Section 8(2) states the general public-interest-over-harm test.
- **D:** The twenty-year rule is separate and retains clauses (a), (c) and (i).

Examiner trap 11: Public interest is a reasoned balance, not the applicant's status or curiosity.

MCQ 12. Twenty-year rule

For information relating to an event twenty years before the request, section 8(3) generally

A. preserves every exemption forever. B. removes section 9 copyright. C. requires disclosure only with court approval. D. favours disclosure but continues protection under section 8(1)(a), (c) and (i).

Answer: D.

Option-specific explanations:

- **A:** The subsection deliberately narrows most exemption claims after twenty years.
- **B:** Section 9 remains a distinct copyright ground.
- **C:** No universal court-preclearance mechanism appears in section 8(3).
- **D:** The three expressly preserved clauses concern sovereignty/security etc., legislative privilege and Cabinet-paper material.

Examiner trap 12: Remember the exact surviving letters: A, C and I.

MCQ 13. Copyright

Section 9 may justify rejection where providing access would

A. infringe copyright subsisting in a person other than the State. B. embarrass the public authority. C. reveal an official error. D. require severance of an exempt line.

Answer: A.

Option-specific explanations:

- **A:** The copyright must subsist in a non-State person for section 9's rejection ground.
- **B:** Embarrassment is not a statutory exemption.
- **C:** Administrative error is often precisely what accountability records reveal.
- **D:** Section 10 ordinarily supports partial disclosure rather than total rejection.

Examiner trap 13: Copyright and confidentiality are different legal concepts.

MCQ 14. Severability

A file contains one exempt paragraph and separable non-exempt expenditure totals. The correct first step is to

A. reject the entire file. B. apply section 10 and disclose the reasonably severable remainder. C. seek Parliament's permission. D. convert the request into a complaint.

Answer: B.

Option-specific explanations:

- **A:** Blanket rejection ignores the statutory less-restrictive tool.
- **B:** Section 10 preserves access to the separable non-exempt portion with reasons and review details.
- **C:** Parliament does not pre-clear individual RTI severance decisions.
- **D:** The form of the request does not change because a mixed record is involved.

Examiner trap 14: A single protected passage does not contaminate every page.

MCQ 15. Third-party procedure

Which statement about section 11 is correct?

A. It is an absolute exemption for all third-party information. B. It gives the third party a veto. C. It provides notice and representation before the PIO decides under the actual exemption/public-interest rules. D. It applies only when the third party is a private company.

Answer: C.

Option-specific explanations:

- **A:** Section 11 is procedural rather than a new exemption.
- **B:** The third party may object, but the PIO remains the decision-maker.
- **C:** Notice, representation, balance, decision and appeal form the statutory route.
- **D:** Section 2(n) includes a public authority within 'third party'.

Examiner trap 15: Consultation protects participation, not private control over the statutory decision.

MCQ 16. CIC composition

The Central Information Commission consists of

A. exactly eleven Information Commissioners besides the Chief. B. the Chief and any number fixed annually by Cabinet. C. only a Chief Information Commissioner. D. the Chief Information Commissioner and not more than ten Information Commissioners.

Answer: D.

Option-specific explanations:

- **A:** The ceiling does not require eleven other members.
- **B:** Cabinet cannot disregard the statutory maximum.
- **C:** The Act permits additional Information Commissioners.
- **D:** Section 12 states the Chief plus up to ten.

Examiner trap 16: A statutory maximum is not proof of current filled strength.

MCQ 17. CIC appointment

Who appoints Central commissioners and on whose recommendation?

A. The President, on a committee of PM, Lok Sabha LoP/deemed leader and a Union Cabinet Minister nominated by the PM. B. The Prime Minister alone, after consulting the CJI. C. The Lok Sabha, by a special-majority resolution. D. The President, on a committee including the Speaker and Cabinet Secretary.

Answer: A.

Option-specific explanations:

- **A:** This reproduces section 12(3), including opposition participation.
- **B:** The CJI is not a member of this selection committee.
- **C:** Parliament does not directly elect the Commission.
- **D:** Neither the Speaker nor Cabinet Secretary occupies the statutory seat.

Examiner trap 17: The appointing authority and committee chair are different offices.

MCQ 18. SIC appointment

The State Information Commission appointment committee includes

A. the Governor as chair and the High Court Chief Justice. B. the Chief Minister as chair, Assembly LoP/deemed leader and a State Cabinet Minister nominated by the CM. C. both Houses' Leaders of Opposition in every State. D. the Speaker, Chief Secretary and Advocate-General.

Answer: B.

Option-specific explanations:

- **A:** The Governor appoints but does not chair the recommendatory committee.
- **B:** Section 15(3) supplies the CM-led three-member composition.
- **C:** The Legislative Council opposition leader is not a statutory member.
- **D:** None of these three offices substitutes for the named committee.

Examiner trap 18: Bicameralism does not add a Council seat to the section 15 committee.

MCQ 19. Qualifications and bars

Which candidate satisfies the statutory design most clearly?

A. A serving MP with journalism experience. B. A party office-bearer who resigns after appointment. C. An eminent public-life expert in science and technology with no barred office, party, business or professional connection. D. Only a retired Supreme Court judge.

Answer: C.

Option-specific explanations:

- **A:** Legislative membership is expressly barred.
- **B:** A current political-party connection is incompatible with office and should not be postponed.
- **C:** Science and technology is a listed field, subject to the conflict bars.
- **D:** Judicial office is neither required nor the exclusive route.

Examiner trap 19: The Commission is multidisciplinary, but eligibility never overrides disqualification.

MCQ 20. Act versus Rules

Which statement correctly separates the post-2019 sources?

A. The Act itself fixes every current salary amount. B. State legislatures prescribe SIC tenure independently. C. The Rules abolished the age ceiling and removal protection. D. The amended Act delegates specified term/service matters; the 2019 Rules prescribe a three-year term and current pay framework.

Answer: D.

Option-specific explanations:

- **A:** Current fixed amounts are found in the service-condition Rules.
- **B:** The Central rule framework applies to the specified State offices under the amended Act.
- **C:** The statutory age ceiling and removal scheme survived.
- **D:** This correctly distinguishes parliamentary delegation from delegated prescription.

Examiner trap 20: A rule-prescribed fact should not be misattributed to the text of Parliament's section.

MCQ 21. Reappointment

Which statement is accurate?

A. An IC is not reappointable as IC but may be appointed Chief through the statutory process, subject to the aggregate five-year limit. B. Every commissioner may receive unlimited three-year renewals. C. The Chief may be reappointed once by executive order. D. Elevation from IC to Chief is automatic by seniority.

Answer: A.

Option-specific explanations:

- **A:** The Act permits possible elevation while limiting aggregate service.
- **B:** Same-office reappointment is barred, not renewable without limit.
- **C:** The Chief is not eligible for reappointment as Chief.
- **D:** Appointment as Chief still requires the statutory selection and appointing process.

Examiner trap 21: Eligibility for elevation is not a vested right to elevation.

MCQ 22. Removal

For proved misbehaviour or incapacity of a State Information Commissioner, removal is by

A. the President after a High Court inquiry. B. the Governor after a Supreme Court inquiry on the Governor's reference. C. the Chief Minister after Cabinet approval. D. the State Legislature by impeachment.

Answer: B.

Option-specific explanations:

- **A:** The President is the Central removal authority, not the SIC authority.
- **B:** Sections 17 and the Supreme Court inquiry route preserve protected State removal.
- **C:** The Chief Minister cannot unilaterally remove under this ground.
- **D:** The Act does not create a legislative-impeachment procedure.

Examiner trap 22: Do not import the SHRC's different removal architecture.

MCQ 23. Complaint and appeal

An applicant primarily wants an order supplying information after denial. The safest statutory route is

A. only a section 18 complaint. B. a civil suit under section 23. C. section 19 first and second appeals, consistent with *State of Manipur*. D. a disciplinary complaint to the PIO's employer.

Answer: C.

Option-specific explanations:

- **A:** Section 18 inquiry is not the automatic disclosure remedy.
- **B:** Section 23 bars ordinary proceedings and RTI supplies its appeal route.
- **C:** The Supreme Court locates the disclosure remedy in section 19's appellate scheme.
- **D:** Discipline may address misconduct but does not replace the access appeal.

Examiner trap 23: Choose the route by the relief sought, not merely by the officer's conduct.

MCQ 24. Section 18 powers

Which power belongs to a section 18 inquiry?

A. Granting the applicant's disputed land title. B. Convicting the PIO of corruption. C. Striking down section 8(1)(j). D. Summoning witnesses and examining evidence on oath.

Answer: D.

Option-specific explanations:

- **A:** The Commission is not the title-adjudicating forum.
- **B:** Criminal conviction belongs to a competent criminal court.
- **C:** A statutory Commission cannot invalidate Parliament's provision.
- **D:** Section 18(3) confers enumerated civil-court-like evidence powers.

Examiner trap 24: Evidence powers do not alter the Commission's statutory identity.

MCQ 25. First appeal

The ordinary first appeal lies

A. within thirty days to an officer senior in rank to the PIO in that public authority. B. within ninety days directly to the Supreme Court. C. to the third party whose record is sought. D. only after a section 18 complaint.

Answer: A.

Option-specific explanations:

- **A:** Section 19(1) creates this departmental review, subject to condonation.
- **B:** Ninety days concerns the second appeal, not Supreme Court filing.
- **C:** A third party may have appeal rights but is not the applicant's FAA.
- **D:** Complaint is not a mandatory precondition to first appeal.

Examiner trap 25: The FAA is internal to the public authority but distinct from the PIO.

MCQ 26. Second appeal and burden

In a section 19 second appeal

A. the applicant must prove the PIO acted mala fide before disclosure can be ordered. B. the PIO bears the onus of proving that denial was justified, and the Commission's decision is binding under the Act. C. the FAA's decision is constitutionally final. D. the Commission cannot examine exemptions.

Answer: B.

Option-specific explanations:

- **A:** Mala fides is not a prerequisite to appellate disclosure.

- **B:** Sections 19(5) and 19(7) create the burden and binding-force rules.
- **C:** Constitutional review survives and the second appeal is statutory.
- **D:** Exemption review is central to deciding whether denial was justified.

Examiner trap 26: Burden reversal corrects the public authority's informational advantage.

MCQ 27. Section 19 remedies

Which is within section 19(8)?

A. Ordering criminal imprisonment of a minister. B. Rewriting the RTI Act's exemption list. C. Requiring improved record-management practices and compensating proven loss or detriment. D. Creating a record that never existed.

Answer: C.

Option-specific explanations:

- **A:** The Commission has no general sentencing power.
- **B:** It applies rather than amends Parliament's law.
- **C:** Systemic compliance directions and compensation are expressly contemplated.
- **D:** RTI does not impose a record-creation duty.

Examiner trap 27: Compliance power is broad within RTI administration, not across all governance disputes.

MCQ 28. Penalty discipline

Which statement is legally accurate?

A. Every one-day delay automatically produces Rs 25,000 penalty. B. Penalty is a fine on the ministry and replaces compensation. C. The applicant bears the burden to prove the PIO lacked due care. D. After hearing, the responsible PIO may face Rs 250 per day up to Rs 25,000, while persistent default may support disciplinary recommendation.

Answer: D.

Option-specific explanations:

- **A:** The Act requires statutory grounds and a reasonable-cause/diligence inquiry.
- **B:** Section 20 penalty is personal; compensation is separately borne by the public authority.
- **C:** The PIO bears the burden of proving reasonable and diligent action.
- **D:** This states rate, cap, hearing and the distinct section 20(2) route.

Examiner trap 28: Penalty, compensation and discipline differ in target, purpose and process.

MCQ 29. Section 24

A human-rights-violation request concerning a listed Central security organisation

A. uses the CIC-approval route and a forty-five-day period; corruption allegations do not automatically carry those extra conditions. B. is absolutely excluded in every circumstance. C. must be answered within forty-eight hours without approval. D. can be decided only by Parliament.

Answer: A.

Option-specific explanations:

- **A:** The human-rights proviso adds CIC approval and forty-five days.
- **B:** Section 24 expressly preserves corruption and human-rights allegation routes.
- **C:** The forty-eight-hour section 7 rule is not the specified section 24 human-rights clock.
- **D:** The statutory administrative route operates without parliamentary pre-clearance.

Examiner trap 29: Separate the shared exception categories from the special conditions attached only to human rights.

MCQ 30. Override and court bar

Which combined statement is correct?

A. Section 22 repeals every exemption and section 23 abolishes writ review. B. Section 22 overrides inconsistent external law while RTI's own limits remain; section 23 does not oust Articles 226 and 32. C. Section 23 authorises a fresh civil suit against every Commission order. D. The Official Secrets Act always prevails over section 8(2).

Answer: B.

Option-specific explanations:

- **A:** Section 22 does not erase sections 8, 9 or 24, and statutory text cannot extinguish constitutional review.
- **B:** This correctly states internal calibration and constitutional review.
- **C:** Section 23 points away from ordinary proceedings rather than creating them.
- **D:** Sections 8(2) and 22 reject automatic OSA supremacy.

Examiner trap 30: Statutory finality and constitutional judicial review coexist.

MCQ 31. Case-law control

Which pairing is accurate?

A. *Girish Deshpande* interpreted the post-2025 clause. B. *Jayantilal Mistry* held every bank customer's record automatically public. C. *Subhash Chandra Agarwal* held the CJI office a public authority but preserved privacy/confidentiality/independence balancing. D. *CBSE* required every authority to create explanatory answers.

Answer: C.

Option-specific explanations:

- **A:** The decision applied the earlier personal-information text.
- **B:** The RBI case rejected a blanket fiduciary claim, not every possible exemption.
- **C:** This states the Constitution Bench's coverage holding and its qualification.
- **D:** *CBSE* limits RTI to held information rather than compelling creation.

Examiner trap 31: Always pair a case with its date-controlled statutory context.

MCQ 32. Monitoring and access reform

Which reform bundle best fits the Act?

A. Require applicants to prove good motive. B. Eliminate physical filing in favour of a portal. C. Treat every repetitive request as abuse without hearing. D. Advance vacancy planning, section 4 audits, better records, compliance tracking, PIO training and assisted offline/digital access.

Answer: D.

Option-specific explanations:

- **A:** Section 6(2) rejects a reasons requirement.
- **B:** Digital-only access can deepen exclusion and ignores assistance duties.
- **C:** No blanket extra-statutory abuse exemption should be invented.
- **D:** The bundle addresses adjudicatory capacity, prevention, enforcement and the digital divide.

Examiner trap 32: A reform is defensible when it strengthens statutory access without adding a new exclusion.

PYQS AND ANSWER PRACTICE

Verified-PYQ and official-key discipline

The audited repository routing ledgers identify one direct UPSC demand for this owner. Its wording is reproduced from the 2020 GS-II paper. UPSC does not publish an official model answer for this Mains question; the solution below is examiner-oriented, not an official key. No objective stem or key is reconstructed.

Verified Mains PYQ - UPSC Civil Services (Main) Examination 2020, GS-II, Question 2 - 10 marks, 150 words

"Recent amendments to the Right to Information Act will have profound impact on the autonomy and independence of the Information Commission". Discuss. (Answer in 150 words)

Demand decode: Explain exactly what the 2019 amendment moved from the Act to executive prescription, analyse the independence mechanism, present surviving safeguards and reach a graded conclusion.

Model solution

The 2019 amendment did not remove the Information Commissions' adjudicatory powers, but it weakened structural insulation.

Earlier, the RTI Act itself fixed a five-year term and linked commissioners' salaries to Election Commission offices. The amendment replaced those statutory guarantees with tenure, pay and service conditions prescribed by the Central Government; the 2019 Rules set a three-year term. Since CIC/SIC decide disclosure disputes involving governments, executive control over these conditions creates a perceived dependence and may chill robust decisions, especially for State Commissions.

However, important safeguards survive: opposition participation in selection, the sixty-five-year age ceiling, same-office reappointment restrictions, Supreme-Court-inquiry removal for proved misbehaviour or incapacity, binding appellate decisions and personal PIO penalties.

Thus, the amendment changes the degree, not the existence, of independence. Advance transparent appointments, secure institutional staffing and stronger statutory insulation of service conditions would better align autonomy with accountability.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: Distinguish a section 18 complaint from a section 19 appeal under the RTI Act.

Model solution

A complaint and an appeal address related failures but provide different routes.

Complaint: Section 18 covers absence of a PIO, refusal to accept an application, denial, delay, unreasonable fee, or incomplete, misleading or false information. The Commission has civil-court evidence powers and may inspect covered records. Contravention can attract section 20 consideration.

Appeal: Section 19 challenges a decision or deemed refusal. The first appeal lies to a senior departmental officer; the second lies to the Commission. The PIO bears the denial burden, and the Commission may order disclosure, compliance and compensation.

In *Chief Information Commissioner v. State of Manipur* (2011), the Supreme Court held that section 18 inquiry is not a substitute for the section 19 disclosure appeal.

Therefore, a person seeking the record should ordinarily use the appeal ladder; complaint jurisdiction supervises access failures.

Audited prose count: 135 words.

Original Mains 2 - 10 marks, 150 words

Question: Explain how section 20 balances deterrence with procedural fairness.

Model solution

Section 20 creates personal deterrence without making penalty automatic.

The Commission may penalise the responsible CPIO/SPIO for unjustified refusal, delay, mala fide denial, knowingly incorrect, incomplete or misleading information, destruction, or obstruction. The rate is Rs 250 per day, capped at Rs 25,000.

Fairness has three controls: a reasonable hearing, proof of a statutory ground rather than mere adverse outcome, and the PIO's opportunity to prove reasonable and diligent conduct.

Persistent default may separately support disciplinary recommendation. Compensation under section 19(8)(b), borne by the public authority, instead restores applicant loss.

Thus, section 20 combines individual accountability, due care and proportionate consequence.

Audited prose count: 105 words.

Original Mains 3 - 15 marks, 250 words

Question: Analyse the statutory powers and institutional limits of the CIC and SIC.

Model solution

Information Commissions are specialised statutory adjudicators with stronger legal tools than merely recommendatory watchdogs, but their jurisdiction remains tied to information access.

Powers: Under section 18 they receive complaints and conduct inquiries with civil-court evidence powers, including summons, oath, affidavit evidence, requisition of records and inspection of any RTI-covered record. Under section 19 they decide second appeals; the denying PIO bears the burden, and the decision is binding. Section 19(8) permits disclosure and systemic compliance directions concerning PIO appointment, publication, record management, training and reporting. It also permits compensation for applicant loss. Section 20 authorises personal PIO penalty of Rs 250 per day up to Rs 25,000 and disciplinary recommendation for persistent default.

Limits: *Chief Information Commissioner v. State of Manipur* confines the disclosure remedy to the appeal route rather than treating section 18 complaint as interchangeable. The Commission supplies access to held or controlled information; it cannot create a record, produce a fresh opinion, grant the underlying pension or licence, investigate and prosecute corruption, rewrite exemptions, sentence officials or exercise general contempt jurisdiction. Section 23 does not prevent constitutional review under Articles 226 and 32.

Thus, CIC/SIC possess binding, corrective and deterrent powers within RTI administration. Their strength lies in exact statutory enforcement, not in becoming general courts or grievance commissions.

Audited prose count: 215 words.

Original Mains 4 - 15 marks, 250 words

Question: Discuss the effect of the RTI (Amendment) Act, 2019 on Information Commission independence.

Model solution

The 2019 amendment altered the structural source of Information Commission independence rather than abolishing the institution.

Change: Earlier, the RTI Act fixed a five-year term and linked salaries to Election Commission offices. The amendment made tenure, pay, allowances and service conditions matters prescribed by the Central Government. The 2019 Rules prescribe three years, retain the statutory age ceiling of sixty-five and fix current pay. Residuary and relaxation provisions also place significant service control with the Centre.

Independence concern: CIC and SIC adjudicate denial by public authorities, including governments. Moving core safeguards from parliamentary text to executive rules can create perceived dependence and a chilling risk. Applying the same central rule-making power to State Commissions also raises a federal-design concern. Shorter tenure may reduce institutional continuity.

Counter-position: Statutory bodies need not replicate a constitutional commission. High fixed pay, opposition participation in selection, non-reappointment rules, Supreme-Court-inquiry removal for proved misbehaviour/incapacity, binding appellate powers and section 20 penalty survive.

Assessment: Independence depends additionally on timely appointments, adequate staff, reasoned selection and compliance with orders. *Anjali Bhardwaj v. Union of India* underlines advance, transparent appointments.

The amendment therefore weakens statutory insulation without making every decision controlled. Restoring clearer tenure protection, publishing objective selection material and securing functional secretariats would combine flexibility with credible autonomy.

Audited prose count: 211 words.

Original Mains 5 - 20 marks, 250 words

Question: Examine the transparency-privacy balance under the RTI Act after the substitution of section 8(1)(j).

Model solution

The current RTI framework begins with a broader clause-level personal-information exemption but retains general disclosure controls.

Current text: DPDP Act section 44(3) came into force on 13 November 2025 and substituted section 8(1)(j) with "information which relates to personal information". The former public-activity, unwarranted-invasion, larger-public-interest and legislative-parity wording is historical.

Privacy effect: The shorter clause can cover personal information without requiring the PIO to prove the former internal tests. This protects dignity and informational privacy, but may also shield records where personal identity intersects with public office, conflict of interest or public expenditure.

Transparency controls: Section 8(2) still permits disclosure where public interest outweighs harm to protected interests. Section 10 requires reasonably severable non-exempt material to be released. Reasons, first appeal, second appeal and constitutional judicial review remain. The proportionality method in *CPIO, Supreme Court v. Subhash Chandra Agarwal* remains constitutionally instructive, although its statutory analysis used the earlier clause.

Case discipline: *Girish Ramchandra Deshpande* also applied the former text and should not be quoted as the current wording. *Jayantilal N. Mistry* rejects generic fiduciary secrecy but does not erase specific exemptions.

Therefore neither privacy absolutism nor unchanged-transparency rhetoric is defensible. Decision-makers should identify privacy harm, test section 8(2), use redaction and give reviewable reasons, while courts preserve a proportionate balance between Articles 19(1)(a) and 21.

Audited prose count: 223 words.

Original Mains 6 - 20 marks, 250 words

Question: Evaluate the RTI regime from request architecture to Commission enforcement, and suggest reforms.

Model solution

The RTI Act creates a complete accountability chain, but the chain is only as strong as its records, officers and adjudicatory capacity.

Prevention and access: Section 4 requires catalogued records and proactive disclosure. Sections 5-7 provide PIOs/APIOs, reason-free applications, assistance, transfer within five days, a thirty-day norm, forty-eight hours for life or liberty, deemed refusal and free supply after delay.

Review and enforcement: Section 19 provides first and second appeals, places the denial burden on the PIO and makes Commission decisions binding. Section 19(8) supports disclosure, systemic compliance and compensation; section 20 supplies personal penalty and disciplinary recommendation. Sections 25-26 add reporting, training and public awareness.

Weaknesses: Delayed appointments and vacancies generate backlogs; weak record management causes non-availability; perfunctory first appeals shift avoidable disputes upward; inconsistent penalty practice reduces deterrence; non-compliance makes binding orders symbolic. Digital-only systems can exclude citizens facing connectivity, language, disability or literacy barriers. Privacy must be protected under current section 8(1)(j), but broad

secrecy can defeat accountability.

Reforms: Start selections before vacancies, publish objective criteria and shortlists, provide functionally secure registries and staff, audit section 4, modernise lawful record retention, track order compliance, issue reasoned penalty decisions and preserve assisted physical, local-language and accessible filing.

RTI is not legally toothless. Its democratic value depends on converting statutory clocks and binding powers into inclusive, timely and reviewable disclosure.

Audited prose count: 225 words.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Advanced 1 - Structural independence is multidimensional

Independence cannot be measured by tenure alone. Selection transparency, opposition participation, service-condition source, removal security, staffing control, budget administration, bench capacity and post-order compliance all shape whether a commissioner can decide against government without direct or indirect pressure. The 2019 change matters because it relocated conditions to executive prescription; a defensible answer should still acknowledge the surviving Supreme-Court-inquiry removal protection and binding powers.

Advanced 2 - Privacy after the DPDP substitution

The operative section 8(1)(j) is short and broad. A careful current-law approach separates four questions: whether requested material is personal information; what privacy or data-security harm disclosure may create; whether section 8(2) public interest outweighs that harm; and whether section 10 redaction can protect identity while revealing accountable public action. Constitutional proportionality remains relevant, but older cases must not be used to restore deleted statutory words by assertion.

Advanced 3 - Public authority as an anti-evasion doctrine

Sections 2(h), *Thalappalam* and *DAV College Trust* prevent two opposite errors. The State cannot necessarily evade transparency by moving public resources or functions into formally private entities where substantial control or finance exists. Conversely, regulation, recognition or incidental support cannot convert every private organisation into a public authority. Evidence should identify the legal source, degree of control, financial materiality and the particular record sought.

Advanced 4 - Democratic transparency beyond the Commission

The Electoral Bonds judgment confirms the constitutional significance of information about political finance for informed voting. Its value here is conceptual: opacity can distort electoral choice and policy accountability. Its remedy came from constitutional adjudication, not an RTI second appeal. This preserves the distinction between the democratic right-to-know ecosystem and the narrower statutory jurisdiction of CIC/SIC.

CONSOLIDATED REGISTER NOTES

Identity and chronology

- Article 19(1)(a) supports the constitutional right to know; CIC/SIC are statutory bodies under the RTI Act, 2005.
- Assent: 15 June 2005; full working provisions: 12 October 2005.
- 2019 Amendment shifted prescribed service matters from fixed Act terms to Central rules.
- DPDP section 44(3) substituted RTI section 8(1)(j) from 13 November 2025.

Definitions and coverage

- Section 2(f): material in any form, including private-body information accessible by a public authority under another law.
- Section 2(j): inspection, notes/extracts, certified copies/samples and electronic access.
- Section 2(h): legal-source bodies plus owned, substantially controlled/financed bodies and substantially financed NGOs.
- *Thalappalam*: substantial control, not ordinary regulation. *DAV College Trust*: real/material direct or indirect finance.
- *CBSE*: held records, including evaluated answer books; no fresh opinion, inference or record creation.

Request and proactive-disclosure architecture

- Section 4: catalogue/index records, computerise where appropriate, publish institutional/budget/subsidy/concession/PIO information, policy facts and reasons.
- Sections 5-7: PIO decision; APIO forwarding (+5 days); no reasons; assistance; transfer within 5 days; 30 days ordinary; 48 hours life/liberty; silence deemed refusal; delayed information free.

Exemption and balancing architecture

- Section 8(1): enumerated protected interests.
- Section 8(2): public-interest-over-harm override notwithstanding OSA and section 8(1).
- Section 8(3): twenty-year opening except clauses (a), (c), (i).
- Section 9: non-State copyright.
- Section 10: severability.
- Section 11: third-party notice/representation, not exemption or veto; 5/10/40-day route.
- Current section 8(1)(j): information relating to personal information; old internal tests are historical.

CIC and SIC design

Head	CIC	SIC
composition	Chief + up to 10 ICs	State Chief + up to 10 State ICs
appointing authority	President	Governor
committee	PM + Lok Sabha LoP/deemed leader + nominated Union Cabinet Minister	CM + Assembly LoP/deemed leader + nominated State Cabinet Minister
expertise	listed multidisciplinary fields	same
conflict bars	legislature, office of profit, party, business, profession	same
removal	President; SC inquiry for proved misbehaviour/incapacity	Governor; SC inquiry for proved misbehaviour/incapacity

2019 service framework

- Act delegates prescribed term/pay/service conditions; Rules prescribe three years, subject to statutory age sixty-five.
- Pay: Central Chief Rs 2,50,000; Central IC, State Chief and State IC Rs 2,25,000.
- Same-office reappointment barred; IC may be appointed Chief by fresh process, aggregate service capped at five years.
- Surviving safeguards: statutory committee, age ceiling, non-disadvantage rule, removal protection and binding powers.

Complaint, appeal and remedies

- Section 18: listed complaint grounds; reasonable-grounds inquiry; civil-court evidence powers; record inspection.
- *State of Manipur*: complaint is not the substitute disclosure appeal.
- Section 19: first appeal 30 days; second appeal 90 days; PIO bears denial burden; decision binding; compliance and compensation.
- Section 20: personal PIO penalty Rs 250/day up to Rs 25,000 after hearing; PIO proves reasonable/diligent conduct; persistent default supports disciplinary recommendation.
- Commission cannot create records, grant underlying services, prosecute corruption, rewrite exemptions or use general contempt power.

Override, security and system learning

- Section 22: RTI prevails over inconsistent external law; its own limits remain.
- Section 23: ordinary proceeding bar; Articles 226/32 judicial review survives.
- Section 24: listed-body exclusion; corruption exception; human-rights route requires CIC/SIC approval and 45 days.
- Sections 25-26: annual reports, legislative laying, conformity recommendations, awareness, disadvantaged-community outreach, PIO training and guide.

Case anchors

- *CBSE* (2011): answer books and held-record boundary.
- *State of Manipur* (2011): complaint/appeal distinction.
- *Girish* (2012): personal records under old clause; date-control.
- *Thalappalam* (2013): control/finance boundary.
- *Jayantilal Mistry* (2015): no generic RBI fiduciary shield.
- *DAV College Trust* (2019): substantial direct/indirect finance.
- *Subhash Chandra Agarwal* (2019): CJI office is public authority; qualified balance.
- Electoral Bonds/ADR (2024): political-funding information and informed voting; constitutional context, not extra CIC jurisdiction.

Independence, implementation and answer spine

- Risks: executive-prescribed service framework, delayed appointments, vacancies/backlog, weak records, perfunctory first appeals, inconsistent penalty, non-compliance, digital divide and overbroad privacy claims.
- Reforms: advance selections, transparent criteria, secure staffing/registries, section 4 audits, lawful digital records, compliance dashboards, reasoned penalty practice and assisted multilingual physical/digital access.
- Final line: Information Commissions have binding statutory teeth, but independent appointments, usable records, inclusive access and reasoned enforcement determine whether RTI produces timely democratic accountability.

COMPLETE ASCII MASTER FLOW DIAGRAM

[1/12] IDENTITY AND CHRONOLOGY

Article 19(1)(a) right-to-know doctrine

- > RTI Act assent: 15 Jun 2005
- > listed institutional provisions immediate; full working provisions: 12 Oct 2005
- > statutory CIC/SIC, not constitutional courts
- > 2019 Amendment + Rules recast service conditions
- > 13 Nov 2025 DPDP s.44(3) substitutes RTI s.8(1)(j)

[2/12] DEFINITIONS AND COVERAGE

s.2(f) information = material in any form + private-body information legally accessible

s.2(j) right = inspect | notes/extracts | certified copies | certified samples | electronic access

s.2(h) public authority:

- Constitution | parliamentary/State law | notification/order
- + owned | substantially controlled | substantially financed
- + substantially financed NGO, directly or indirectly

Limits: existing/controlled information only; no fresh opinion, inference or record

Cases: CBSE (held records); Thalappalam (substantial control); DAV College Trust (material finance)

[3/12] PREVENTION AND REQUEST

s.4 records: catalogue/index -> computerise where appropriate -> proactive publication

- > policy facts + reasons -> maximum suo motu disclosure

s.5 PIO decides; APIO receives/forwards (+5 days); assisting officer deemed PIO for contravention

s.6 no reasons; assistance for oral request; transfer within 5 days

s.7: 30 days | life/liberty 48 hours | silence deemed refusal | delayed supply free

[4/12] ROLE FIREWALL

PIO -> primary access decision

FAA -> senior departmental first appeal

CIC/SIC -> s.18 inquiry + s.19 second appeal + s.20 consequences

High Court/Supreme Court -> constitutional judicial review

NONE may: create records | grant underlying service | prosecute corruption | rewrite exemptions
| exercise general contempt jurisdiction

[5/12] EXEMPTION AND PARTIAL DISCLOSURE

s.8(1) enumerated protected interests

- > s.8(2) public-interest-over-harm override, notwithstanding OSA and s.8(1)
- > s.8(3) 20-year disclosure; clauses (a), (c), (i) continue

s.9 non-State copyright

s.10 sever non-exempt part

s.11 third-party route: notice 5 days -> representation 10 -> decision 40
procedure, not exemption; objection, not veto

Current s.8(1)(j): "information which relates to personal information"

[6/12] CIC - SECTIONS 12 TO 14

Chief Information Commissioner + up to 10 Information Commissioners

President <- recommendation: PM (chair) + Lok Sabha LoP/deemed leader

+ Union Cabinet Minister nominated by PM

eminent public life: law | science-tech | social service | management

journalism | mass media | administration-governance

bars: legislature | office of profit | party | business | profession

removal: President; proved misbehaviour/incapacity -> Supreme Court inquiry

[7/12] SIC - SECTIONS 15 TO 17

State Chief Information Commissioner + up to 10 State Information Commissioners

Governor <- recommendation: CM (chair) + Assembly LoP/deemed leader

+ State Cabinet Minister nominated by CM

same expertise/conflict bars

removal: Governor; proved misbehaviour/incapacity -> Supreme Court inquiry

jurisdiction follows public authority, not applicant residence

[8/12] 2019 ACT-RULES DISTINCTION

Pre-2019 Act: fixed 5 years + Election-Commission-linked salary/status

2019 Amendment: term/pay/allowances/service conditions delegated to Central prescription

2019 Rules:

term = 3 years from entry, subject to statutory age 65

pay = Central Chief Rs 2,50,000; Central IC/State Chief/State IC Rs 2,25,000

Act retains: age ceiling | appointment | reappointment limits | protected removal

IC may become Chief by fresh process; aggregate IC+Chief service <=5 years

[9/12] COMPLAINT VERSUS APPEAL

s.18 complaint: no PIO/application blocked/refusal/delay/unreasonable fee/
incomplete-misleading-false information/other access matter

- > reasonable-grounds inquiry -> summons/oath/affidavit/records/inspection
- > possible s.20 consequence

X no automatic disclosure order
s.19: first appeal 30 days -> senior officer
second appeal 90 days -> CIC/SIC
PIO bears denial burden; decision binding
Case: Chief Information Commissioner v State of Manipur (2011)

[10/12] REMEDIES AND PENALTY

s.19(8): disclosure + PIO appointment + publication + record reform + training + reporting
+ compensation for applicant loss/detriment + penalty process
s.20(1): responsible PIO, Rs 250/day, max Rs 25,000
triggers without reasonable cause: refusal | delay | mala fide denial |
knowingly incorrect/incomplete/misleading | destruction | obstruction
hearing + PIO burden to prove reasonable/diligent conduct
s.20(2): persistent default -> disciplinary recommendation under service rules

[11/12] OVERRIDE, SECURITY, REPORTING

s.22 RTI overrides inconsistent OSA/other law, but RTI's own limits remain
s.23 ordinary proceeding bar; Articles 226/32 review survives
s.24 listed intelligence/security organisations:
general exclusion
corruption allegation -> Act applies
human-rights allegation -> CIC/SIC approval + 45 days
s.25 annual report -> Government -> Parliament/State Legislature
s.26 awareness + disadvantaged-community outreach + PIO training + updated guide

[12/12] CASES, PERFORMANCE AND ANSWER VERDICT

CBSE (2011): evaluated answer books; no record creation
Girish (2012): personal records under old clause; date-control after 2025
Jayantilal Mistry (2015): no blanket RBI fiduciary secrecy
Subhash Chandra Agarwal (2019): CJI office public authority; balanced disclosure
ADR electoral bonds (2024): voter political-funding information under Art.19(1)(a);
constitutional holding, not new CIC jurisdiction

Performance chain:

advance appointments -> adequate benches/staff -> good records -> reasoned FAA/Commission orders
-> penalty where justified -> compliance tracking -> inclusive offline/digital access

QUALIFIED VERDICT:

binding legal teeth exist; autonomy, capacity, records, privacy balancing and access design
determine whether statutory transparency becomes timely democratic accountability.